

EASTMAN & SMITH LTD.

ATTORNEYS AT LAW

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December 11, 2024

Timothy J. Williams
80 Woodlake Trail
Mt. Vernon, OH 43050

Invoice # 3976740
Client # 3472
Matter # 222027
Billing Attorney: SECH

For Professional Services Rendered Through November 30, 2024

RE: Knox Cattle Company Dam

PROFESSIONAL SERVICES RENDERED

Date	Tkpr	Description of Services	Hours	Amount
11/01/24	SECH	Telephone conference with Mark Long regarding status and strategy; review and analyze Receiver's Interim Report; prepare correspondence to Mark Long regarding same; preparation for Monday's status conference at court.	3.60	2,574.00
11/04/24	SECH	Representation at status hearing before Judge Wetzel; follow up conference with Mark Long to discuss strategy.	3.80	2,717.00
11/05/24	SECH	Preparation of memorandum contra State of Ohio's motion for additional interim risk reduction measures; service and filing of same.	2.20	1,573.00
11/11/24	AMVO	Docket upcoming pretrial conferences.	.10	15.00
11/12/24	SECH	Review and analyze State of Ohio's Motion to Strike Long Defendants' Memorandum Contra Motion for Additional Risk Reduction Measures.	.20	143.00
11/13/24	SECH	Research and preparation of memorandum contra State of Ohio's motion to strike memorandum contra motion for IRRM; filing and service of same; review correspondence from attorney for receiver, Aaron Firstenberger, regarding proposed draining of lake and interim remedial steps; prepare correspondence to Mark Long regarding same.	3.40	2,431.00
11/14/24	SECH	Telephone conference with Mark Long regarding preparation for his meeting with Receiver and City Engineer Ball.	.50	357.50

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Date	Tkpr	Description of Services	Hours	Amount
11/15/24	SECH	Telephone conference with Mark Long to discuss his meeting with receiver and City Engineer to discuss possible remediation work at dam.	.80	572.00
11/18/24	SECH	Review and analyze minutes of recent meeting between homeowners committee, Brian Ball, and receiver to discuss proposed remedial measures; telephone conference with Mark Long regarding same; prepare correspondence to attorneys for City of Mount Vernon requesting information about basis for claimed need for immediate incumbrance of funds; further correspondence with attorney Steve Samuels regarding same.	1.40	1,001.00
11/19/24	SECH	Review correspondence from attorney Steve Samuels responding to request for information about IRRMs; correspondence with Mark Long regarding same.	.80	572.00
11/20/24	SECH	Correspondence with attorney Steve Samuels regarding requested information concerning IRRMs; correspondence with Mark Long regarding same; telephone conference with Mr. Long.	.70	500.50
11/21/24	SECH	Preparation of draft cross-examination outline for Brian Ball.	1.60	1,144.00
11/22/24	SECH	Review and analyze Order granting request of State of Ohio for extension of time; prepare correspondence to Mark Long regarding same.	.10	71.50
11/25/24	SECH	Review and analyze materials sent by Mark Long regarding lake capacity; analyze information at Mark Long's request concerning potential rejection of acceptance of quit-claim deed.	1.40	1,001.00
11/26/24	KDTU	Review file regarding developers conveyance of interest via quit claim deed; research and review of caselaw regarding delivery and acceptance requirements to pass title under Ohio law; preparation of notes to file regarding same.	1.30	325.00
11/27/24	SECH	Correspondence with Mark Long regarding reservoir storage issues; further preparation of cross-examination of Brian Ball; preparation of exhibits for hearing.	3.60	2,574.00
11/29/24	SECH	Research regarding restrictions on ARPA funds. Conference with Jeff Harris regarding deadlines for encumbering funds under ARPA. Prepare direct examination outline for Mr. Harris, and exhibits. Review and analyze State of Ohio's Reply Memorandum in Support of Additional IRRM Measures. Correspondence with Mark Long regarding same, and preparation for hearing. Conference with Mark Long and engineer Mike Higgins regarding State of Ohio's Reply Memorandum, and analysis of engineering protocols for IRRMs.	5.50	3,932.50

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FEES FOR PROFESSIONAL SERVICES**\$ 21,504.00****SUMMARY OF PROFESSIONAL SERVICES**

Tkpr	Name	Hours	Total
AMVO	Angela M. Vohsing	.10	15.00
KDTU	Kyle D. Tucker	1.30	325.00
SECH	Stephen E. Chappellear	29.60	21,164.00
	TOTALS	31.00	\$ 21,504.00

INVOICE TOTAL**\$ 21,504.00**

Less Trust Applied

\$ -10,426.39**INVOICE BALANCE DUE****\$ 11,077.61**

A late charge of 1.5% per month (18% Annual Rate) will be assessed after 60 days from the date of the invoice.